

never make good her title to *dower* (*b*) ; “not,” said Lord Mansfield, “on reason or principle, but because wrong determinations had misled in too many instances to be then set right” (*c*) ; or rather, as Lord Redesdale thought, because the admission of dower would have occasioned great inconvenience to purchasers — a mischief that in the case of curtesy was not to be equally apprehended (*d*).

Lord Mansfield's doctrines. — Principles governing trusts at the present day. — Lord Mansfield was for carrying the analogy of trusts to legal estates beyond the legitimate boundary. “A use or trust,” he said, “was heretofore understood to be merely as an agreement, by which the trustee and all claiming from him in privity were personally liable to the *cestui que use*, and all claiming under him in like privity ; nobody in the *past* was entitled under or bound by the agreement : but now the trust in this Court is the same as the *land*, and the trustee is considered merely as an instrument of conveyance” (*e*). And in the application of this principle his Lordship argued, that the estate of the *cestui que trust* was subject to *escheat*, and that on failure of heirs of the trustee, the lord who took by *escheat* was bound by the trust. But to these propositions the Courts of Equity have never yet assented (*f*). The limit to which the analogy of trusts to legal estates ought properly to be allowed was well enunciated by Lord Northampton in the case of *Burgess v. Wheate*. “It is true,” he said, “this Court has considered trusts *as between the trustee, cestui que trust, and those claiming under them*, as imitating the possession ; but it would be a bold stride, and, in my opinion, a dangerous conclusion, to say therefore this Court has considered the creation and instrument of trust as a mere nullity, and the estate in all respects the same as if it still continued in the seisin of the creator of the trust, or the person entitled * to it : for my own part [*12] *I know no instance where this Court has permitted the creation of a trust to affect the right of a third person*” (*a*) ;

(*b*) *Colt v. Colt*, 1 Ch. Re. 254.

(*c*) *Burgess v. Wheate*, 1 Ed. 224.

(*d*) See *infra*.

(*e*) *Burgess v. Wheate*, 1 Ed. 226.

[(*f*) But see now 47 & 48 V. c.

71, s. 4.]

(*a*) *Burgess v. Wheate*, 1 Ed. 250,

251.